

Court No. - 37

Case :- WRIT - C No. - 42074 of 2017

Petitioner :- Smt. Beena Dubey

Respondent :- M.D. Kanpur Electricity Supply Co. Ltd. And 4 Others

Counsel for Petitioner :- Manvendra Nath Singh, Virendra Kumar

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Learned counsel for the respondent/Electricity Department may obtain instructions on the issues as to why no action was taken pursuant to the raid in the premises against the tenant namely the respondent no.5, secondly, as to why no case was instituted in terms of Section 138 of Negotiable Instrument Act and thirdly to what extent would be the extent of liability of the petitioner who is the Landlord of the premises in which the fifth respondent was a tenant.

The petitioner may serve the respondent no.5 personally outside Court for which dasti summons shall be issued. Steps within two days. The matter shall come up on Monday next (18.09.2017) by which date the instructions be produced and an affidavit of service by the petitioner be filed. It shall be open to the respondent no.5 to file an affidavit in response to the writ petition.

Order Date :- 11.9.2017

R./

Court No. - 37

Case :- WRIT - C No. - 42074 of 2017

Petitioner :- Smt. Beena Dubey

Respondent :- M.D. Kanpur Electricity Supply Co. Ltd. And 4 Others

Counsel for Petitioner :- Manvendra Nath Singh, Virendra Kumar

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Supplementary affidavit filed today which is taken on record. The petitioner has filed an incomplete affidavit of service without indicating as to what is the correct address of the respondent no. 5 and how was it sought to be served on the said respondent. He may file a better affidavit to that effect.

As prayed, put up on Thursday i.e 21.09.2017 to enable learned counsel for the respondent-Electricity Supply Company Ltd to produce the agreement or any consent given by the petitioner to extend the benefit of an electricity connection to the respondent no. 5.

Order Date :- 18.9.2017

S.Chaurasia

Court No. - 37

Case :- WRIT - C No. - 42074 of 2017

Petitioner :- Smt. Beena Dubey

Respondent :- M.D. Kanpur Electricity Supply Co. Ltd. And 4 Others

Counsel for Petitioner :- Manvendra Nath Singh, Virendra Kumar

Counsel for Respondent :- C.S.C., Suman Kumar Yadav

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Heard learned counsel for the parties.

The thrust of the argument on behalf of the petitioner to avoid the realization of the electricity dues in respect of the premises in question is on the ground that even though, the petitioner is the owner-cum-landlord of the premises, yet the electricity consumption was a liability of the respondent no. 5 exclusively, inasmuch as, the electricity connection stood in his name and it was his liability that was to be discharged in terms of the agreement entered into between the Electricity Department and the respondent no.5.

Learned counsel for the petitioner, therefore, contends that in the absence of any such co-extensive liability of the petitioner as landlord/owner the realization of the electricity dues from the petitioner is unlawful. A prayer has been made to quash the recovery proceedings initiated dated 22nd August, 2017 that is being executed by the Tehsildar, Sadar Kanpur Nagar.

We had adjourned the matter on the previous occasions to ascertain the status of such liability and in order to verify the terms and conditions of any agreement of consent that may be available on record.

It is true that the petitioner did not give any consent to the Electricity Department directly, but the agreement which was entered into between the petitioner and the respondent no.5, being the agreement of tenancy the same contains Clause-5 which entails that the tenant namely the respondent

no.5 shall get an electricity connection in his name and payment of any electricity dues will be his liability. On the strength of the said clause, it is urged by the learned counsel for the petitioner that this does not amount to giving of any consent to the Electricity Department and it was only a bipartite agreement between the petitioner and the respondent no.5.

The said clause according to the petitioner does not create any liability off the petitioner to discharge the burden of depositing the dues of electricity that has accrued on account of the connection taken in the name of respondent no.5 who was a tenant.

Sri S.K. Yadav, learned counsel for the respondent-department has invited the attention of the Court to Clause 4.3 (f) (vi) of the U.P. Electricity Supply Code, 2005 to urge that in case the electricity connection for the premises is given with the consent of the house owner, then such person shall ensure the payment of all arrears or dues of electricity by the tenant before the tenant vacates the premises. The contention is that the respondent no.5 has now left the premises and therefore, it was the duty of the petitioner to have got the entire electricity dues cleared off before the tenant departed from the premise. Consequently, the recovery can be made from the petitioner.

We have considered the submissions raised and what we find that under Clause 4.4 (a) (vi) the owner has to give consent for getting a new supply connection. The said consent is available on record which is evident from Clause -5 of the agreement between the petitioner and the respondent no.5 even though, the said consent is not directly endorsed to the Electricity Department. The petitioner, therefore, does not seem to have objected to any installation of a electricity connection in favour of the respondent no.5, rather the petitioner had agreed to the said connection being given to the respondent no.5 by the Electricity Department.

The dispute, however, remains with regard to the liability of the consumption of electricity. It is correct that there is no consent of bearing the liability by the petitioner, but in view of Clause 4.3 (f) (vi) the liability

of the petitioner becomes co-extensive for clearance and any arrears of dues before the tenant vacates the premises. The petitioner can claim recovery from the respondent no. 5 and can undertake such procedure that may be available in law including any criminal prosecution that may be permissible on account of the acts and omissions of the respondent no.5. As a matter of fact the Electricity Department also can take action against the respondent no. 5 inasmuch as, it is his cheque which was tendered and was dishonoured and therefore, proceedings under Section 138 of the Negotiable Instruments Act can be undertaken by the Electricity Department. Apart from this criminal prosecution and recovery proceedings can also be pressed into service inasmuch as, the tenant is not absolved of his liability of payment which is evident from the bipartite agreement between the petitioner and the respondent no.5, and the connection in the name of respondent no.5.

Accordingly, we find that the liability being also extendable to the owner of the premises, it will not be appropriate to hold that the recovery proceedings initiated are unlawful.

However, it is open to the petitioner to approach the respondent Executive Engineer for taking such steps against the respondent no.5 as well and also seek redressal of grievances with regard to the liability which is sought to be realized from the petitioner in such form as may be admissible in terms of U.P. Electricity Supply Code, 2005 including fixing of instalments.

The writ petition stands **disposed of** with the said observations.

Order Date :- 21.9.2017
M. ARIF